

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

Docket No. 18-10

KIRSHA, B.V.,
Leendert Johannes BERGWERFF a/k/a Hans BERGWERFF,
LINDA SIEVAL,

Respondents.

MOTION FOR ENLARGEMENT OF TIME TO FILE

Pursuant to Rules 69 and 102 of the Rules of Practice and Procedure of the Federal Maritime Commission, 46 C.F.R. §§ 502.69, 502.102, respondents Kirsha B.V., Hans Bergwerff, and Linda Sieval (collectively, "Respondents"), by and through their undersigned counsel of record, respectfully request an enlargement of time to file a memorandum of exceptions, and the brief in support of such exceptions, to the Administrative Law Judge's (ALJ) Order Denying Respondents' Petition for Attorney Fees (Order) by 14 days until March 26, 2020. In support of this request, Respondents state as follows:

1. On February 20, 2020, the ALJ issued the Order in the captioned proceeding.
2. Respondents' memorandum of exceptions, and the brief in support of such exceptions, to the ALJ's Order is currently due to be filed by the Respondents on March 13, 2020. Refer to 46 C.F.R. §§ 502.254, 502.227.
3. Upon a showing of good cause, an enlargement of the time for filing a memorandum of exceptions, and the brief in support of such exceptions, to the Presiding Judge's Order may be granted. Refer to 46 C.F.R. §§ 502.102, 502.228. While motions

for enlargement of time must be filed at least seven days before the scheduled filing date, a motion for enlargement of time filed less than seven days before the scheduled filing date may be considered where reasonable grounds are found for failure to meet the seven day requirement. *Id.* at § 502.102(a).

4. Good cause and reasonable grounds exist for the requested enlargement of time. Additional time is needed due to the rapid spread of the deadly coronavirus disease (COVID-19) over the last several weeks. Out of an abundance of caution, and given that counsel is part of the population that is at most risk for contracting COVID-19, counsel has been working remotely on an intermittent basis with limited resources. Based on a lack of proper national and local warning, especially to older citizens, undersigned counsel undertook a trip to Las Vegas to address and participate in meetings with about 100 logistics companies, many from China, from February 25 to February 27. Refer to *Appendix A – Las Vegas Flight Itinerary and Attendance Badge*. Upon his return, as a result of the fast developing circumstances with the COVID-19 pandemic, the undersigned put into effect social-distancing practices which have interfered with meeting the time requirements of filing a memorandum of exceptions, and the brief in support of such exceptions, to the subject ALJ's Order.

5. Pursuant to Rule 502.71, 46 C.F.R. § 502.71, counsel for Respondents e-mailed counsel for Complainant on the morning of March 12, 2020, explaining the situation identified in paragraph 4 above and inquiring if Complainants opposed the instant motion. Counsel for Complainant did not provide a response. Respondents would not oppose a response from Complainant to the instant motion.

WHEREFORE, Respondents respectfully request an enlargement of time to file memorandum of exceptions, and the brief in support of such exceptions, in the captioned docket.

Respectfully submitted,



By:

Dated: March 12, 2020

Carlos Rodriguez
Husch Blackwell LLP
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Counsel for Respondents

CERTIFICATE OF SERVICE

I hereby certify that on this 11th day of March 2020, a true and complete copy of the foregoing *Motion for Enlargement of Time to File* was served on the following by electronic mail and first class mail, postage pre-paid:

Ashley W. Craig
Venable LLP
600 Massachusetts Avenue, N.W.
Washington, D.C. 20001

Counsel for Complainant

A handwritten signature in black ink, appearing to read 'Eddie Edwards', written over a horizontal line.

Eddie Edwards

Kirsha, B.V.
Hans Bergwerff
Linda Sieval

APPENDIX A

Bartell, Sylvia

From: Southwest Airlines <southwestairlines@ifly.southwest.com>
Sent: Thursday, February 20, 2020 4:29 PM
To: Glover, Aryunna
Subject: Carlos's 02/25 Las Vegas trip (N3VJ2P): itinerary.

Stay "in the know".

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Hi Carlos,

Below you'll find this trip's itinerary. Please note, you received this email at the request of the individual who booked this reservation.

FEBRUARY 25 - FEBRUARY 27

BWI  **LAS**

Baltimore to Las Vegas

Confirmation # **N3VJ2P**

Confirmation date: 02/20/2020

PASSENGER Carlos Rodriguez

Your itinerary

Flight 1: Tuesday, 02/25/2020 Est. Travel Time: 5h 35m

FLIGHT
527
DEPARTS
BWI 04:00PM
Baltimore



ARRIVES
LAS 06:35PM
Las Vegas

Flight 2: Thursday, 02/27/2020 Est. Travel Time: 4h 25m

FLIGHT
186
DEPARTS
LAS 03:30PM
Las Vegas



ARRIVES
BWI 10:55PM
Baltimore

GOAL

GLOBAL OCEAN AGENCY LINES

**CARLOS
RODRIGUEZ**

**2020
ANNUAL
MEETING**



Husch Blackwell

USA